

Court No. - 39

Case :- WRIT - C No. - 26380 of 2020

Petitioner :- Sayeed Ahmad And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Akash Gupta

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard Sri Arpit Agarwal, learned counsel for the petitioners, Sri B.P. Singh Kachhwaha, learned Standing Counsel appearing for the State-respondent no. 1 and Sri Mukesh Kumar Singh, learned counsel appearing on behalf of the respondent nos. 2, 3 and 4.

Learned counsel for the petitioners has filed a supplementary affidavit annexing the Final Assessment Notice dated 4.12.2020 which was served upon them after filing the present writ petition. The same is taken on record.

The writ petition has been filed seeking following reliefs:-

" (i) Issue a writ, order or direction in the nature of Certiorari whereby quashing the impugned demand notices dated 8.10.2020 (Annexure No. 1 and 2) issued by the respondent no. 3 to the petitioner no. 1 and 2 whereby provisionally assessing a demand of Rs. 2,16,016/- from the petitioners.

(ii) Issue a writ, order or direction in the nature of Certiorari whereby quashing the impugned orders/communication dated 03.11.2020 (Annexure No. 4) passed by the respondent no. 3 whereby illegally rejecting the objections filed by the petitioners.

(iii) Issue a writ, order or direction in the nature of Certiorari whereby quashing all the consequential proceedings in pursuance of the impugned demand notices dated 08.10.2020 (Annexure No. 1 and 2) and the impugned orders/communication dated 03.11.2020 (Annexure No. 4) passed by the respondent no. 3."

The submission of learned counsel for the petitioners is that the checking squad had inspected the premises of the petitioners and thereafter the impugned demand notice was served upon them on 8.10.2020 disclosing that the electricity is being used by illegal means and imposed the liability of Rs. 2,16,016/- in pursuance of the Provisional Assessment Notice issued to the petitioners on the basis of an F.I.R. in respect of theft of electricity. The petitioners have made a reply on 19.10.2020 that they are not using electricity by illegal means further submitting that they are regularly paying the bills and there is no dues, whatsoever, against them.

Learned counsel for the petitioners further submits that the petitioners have not been given any opportunity of hearing and as such, the recovery proceedings served upon them, is bad in the eyes of law. It is further contended that the respondents have not proceeded in accordance with the provisions contained in Section 126 (3) of the Act, 2003 and Clause 8.1 of the Electricity Supply Code, 2005 (in short 'Code, 2005') as no opportunity of hearing has been afforded to the petitioners. The respondent authority has merely replied parawise to the objections submitted by the petitioners.

The petitioner thus submits that the entire exercise of the respondent authority is against the provision of Clause 6.8 as well as Clause 8.1 of Electricity Supply Code, 2005. As such, the demand notice is per se illegal. More so, the final assessment is made subsequent to the issuance of demand notice on 4.12.2020, which has been appended with the supplementary affidavit.

Learned counsel appearing on behalf of Power Corporation i.e. respondent nos. 2, 3 and 4 could not justify the issuance of the final assessment in the absence of giving any opportunity to hear the petitioner and the demand notice was issued earlier and the final assessment was made, later on.

At this stage, we deem it proper to reproduce paragraph 16 of the judgment passed in the case of **Shishir Jain vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another, 2017 (3) AWC 3084**, by a Division Bench of this Court. The relevant paragraph 16 of aforesaid judgment reads as under :

"16. Be that as it may, in case there is no final assessment as suggested by the learned counsel for the respondent, the petitioner cannot be compelled to deposit the amount of provisional assessment. Without making final assessment after considering the objection and giving opportunity to the petitioner, he cannot be compelled to deposit any amount. In such circumstances, the two impugned notices dated 4.3.2017 issued by respondent no.2 are not liable to be sustainable and are hereby quashed."

In view of aforesaid, we are of the opinion that petitioners could not be compelled to deposit any amount on the basis of provisional assessment without affording any opportunity of hearing to him, while making any final assessment, that too without supplying the copy of the said order. The entire procedure adopted by respondent no.3 dehors the statutory provisions of Section 126 of the Act, 2003 and Clause 8.1 of the Code 2005. The Clause 8.1 of the Code, 2005 provides the procedure to be adopted by licensee for inspection, provisional assessment, hearing and final assessment in case of theft of electricity. Amount which is mentioned in the provisional

assessment has been treated as final assessment without affording any opportunity of hearing, the same is in violation of principles of natural justice.

Considering the facts and circumstances of the case, but without entering into the merits of the case, this writ petition is ***disposed of*** directing the petitioners to move a fresh representation before respondent no. 3 within two weeks from today ventilating his grievances and in case, such representation is moved, the same shall be considered and decided by respondent no. 3 who shall pass an appropriate, reasoned and speaking order regarding final assessment after giving an opportunity of hearing to the petitioners, as expeditiously as possible, preferably within a period of four weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioner, whichever is earlier, no coercive action shall be taken against him pursuant to the recovery In the meantime, no coercive measure shall be taken pursuant to the demand notice dated 4.12.2020.

It is made clear that if the petitioners fail to file the representation as indicated above, they shall not be entitled to get the benefit of this order.

Learned counsel for the petitioners shall be provided a copy of relevant documents by the authority concerned in case any application is moved.

Order Date :- 21.1.2021

Saurabh